

ASCII MASTER FLOW – PANEL 1/9: Article 244 starting point and the autonomy-development rationale

ROOT PROBLEM

ordinary territorial administration may reproduce dispossession and weak bargaining power.

ARTICLE 244(1)

Fifth Schedule -> Scheduled Areas and Scheduled Tribes outside the Sixth Schedule map.

ARTICLE 244(2)

Sixth Schedule -> tribal areas in Assam, Meghalaya, Tripura and Mizoram.

ARTICLE 244A

Parliament may create an autonomous State within Assam with legislature/CoM.

TERMS

Scheduled Tribe = Article 342 community status

| Scheduled Area = presidential territorial declaration

| tribal area = Sixth Schedule territorial unit.

CORE IDEA differentiated institutions pursue substantive equality within one Constitution.

ASCII MASTER FLOW – PANEL 2/9: Fifth Schedule: declaration, Governor, TAC and regulation chain

SCHEDULED AREA

President declares, enlarges, diminishes or alters after the constitutional consultation route.

EXECUTIVE CHAIN

State executive applies -> Governor reports annually/when required to President

-> Union may issue directions on administration.

TRIBES ADVISORY COUNCIL

up to 20 members; as nearly as may be three-fourths ST legislators in the State.

advises on ST welfare/advancement matters referred by Governor.

GOVERNOR'S REGULATION

peace and good government -> restrict/prohibit tribal land transfer

-> regulate allotment -> regulate money-lending

-> may amend State/Parliament law for the area.

CHECK

regulation requires Presidential assent; personal-discretion claims need exact authority.

ASCII MASTER FLOW – PANEL 3/9: Sixth Schedule territory, council composition and four-State scope

SCOPE

Assam | Meghalaya | Tripura | Mizoram only.

AUTONOMOUS DISTRICT

Governor organises territory; multiple tribes may form autonomous regions.

ORDINARY DISTRICT COUNCIL MODEL

not more than 30 members -> up to four nominated by Governor

-> remainder elected by adult suffrage -> normally five-year elected term.

REGIONAL COUNCIL

created for an autonomous region; powers follow the Schedule and applicable rules.

ASSAM VARIATION

special paragraphs/statutes/accord implementation may modify composition and powers.

LIMIT ADC != State, municipality, ordinary Panchayat or Article 244A autonomous State.

ASCII MASTER FLOW – PANEL 4/9: Sixth Schedule legislative, executive, judicial and fiscal powers

LEGISLATIVE

land other than reserved forest | non-reserved forest | shifting cultivation
| village administration | inheritance | marriage/divorce | social customs.
Governor assent is required for council laws.

EXECUTIVE

primary schools, dispensaries, markets, roads and specified local services.

JUDICIAL

village courts/council courts for specified tribal-party disputes
subject to constitutional/statutory supervision and jurisdiction rules.

FISCAL

District/Regional Funds | land revenue | listed taxes/fees | mineral-royalty share.

CHECKS

Governor territorial and suspension/dissolution powers
| Parliament/State-law application controls | audit and judicial review.

LIMIT autonomy is substantial but enumerated and supervised, not sovereignty.

ASCII MASTER FLOW – PANEL 5/9: Fifth and Sixth Schedules: complete close-option comparison

DIMENSION

FIFTH SCHEDULE

SIXTH SCHEDULE

States	multiple notified States	Assam/Meghalaya/Tripura/Mizoram
territory	Scheduled Area	autonomous district/region
core body	Governor + TAC	elected District/Regional Council
law mechanism	Governor regulation	council law + Governor assent
judicial power	no Schedule-created ADC courts	council/village courts in listed field
finance	State/Union channels	own funds + listed taxes/royalty share
local democracy	PESA in covered areas	council system; Part IX ordinarily excluded

COMMON PURPOSE

land/custom protection + self-government + development administration.

TRAP

TAC is advisory, not an ADC | Sixth Schedule does not cover every North-Eastern State.

ASCII MASTER FLOW – PANEL 6/9: PESA, FRA, land and resource rights with judicial boundaries

PESA, 1996

Part IX extension to Fifth Schedule areas -> customary village/Gram Sabha
-> plans/resources/markets/land safeguards through exact statutory verbs.

FRA, 2006

individual/community forest rights + community forest-resource governance
through its own claim and recognition procedure.

LAND / MINING CHAIN

territorial law -> land-transfer rule -> PESA role -> FRA rights
-> forest/environment clearance -> rehabilitation -> judicial review.

Samatha (1997)

protected Scheduled-Area land under the applicable Andhra Pradesh regime;
not a detached nationwide mining ban.

Orissa Mining Corporation (2013)

Gram Sabhas determined specified FRA religious/community-right claims at Niyamgiri;
not an unlimited veto over every project.

ASCII MASTER FLOW – PANEL 7/9: Scheduled Tribe safeguards beyond territorial autonomy

RIGHTS AND REPRESENTATION

Article 46 -> education/economic interests and protection from exploitation.

Articles 330/332 -> ST political reservation in Lok Sabha/State Assemblies.

Article 335 -> service claims consistent with administrative efficiency.

FINANCE AND OVERSIGHT

Article 275(1) -> specified grants

| Article 338A -> National Commission for Scheduled Tribes

| Article 339 -> commission and Union welfare-scheme directions.

NCST ROLE

monitor safeguards -> inquire into complaints -> advise planning

-> report to President -> recommendations and follow-up.

BOUNDARY

NCST does not replace Governor/TAC, Gram Sabha, ADC, courts or elected governments.

ASCII MASTER FLOW – PANEL 8/9: Article 371, ordinary Panchayats, autonomous councils and proposal control

DO NOT COLLAPSE FOUR SYSTEMS

Article 371A/371G -> State-specific Part XXI consent shields.

Fifth Schedule -> Governor/TAC administration for Scheduled Areas.

Sixth Schedule -> autonomous district/regional councils in four States.

ordinary Part IX -> Panchayats outside exclusions; PESA modifies Fifth Schedule route.

ACCOUNTABILITY TENSIONS

autonomy vs elite capture | custom vs individual rights

| development vs land/resource security | Governor oversight vs elected legitimacy.

CURRENT CONTROL

Ladakh or other demands for Sixth Schedule/Statehood/Article 371 safeguards

remain proposals until the Constitution or law is validly changed.

REFORM

clear jurisdiction + audited funds + accessible laws + women/community voice

-> transparent Governor action + timely rights recognition.

ASCII MASTER FLOW – PANEL 9/9: Prelims firewalls, Mains architecture and qualified tribal-governance synthesis

PRELIMS FIREWALL

President declares Scheduled Areas | Governor makes Fifth Schedule regulations
| President assents | TAC advisory | ADC laws need Governor assent
| reserved forest excluded from listed ADC forest power
| Article 244A applies only within Assam.

PYQ ROUTES

Fifth/Sixth identification | council composition/powers
| PESA verbs | FRA relationship | Article 275/339 | land/mining case limits.

MAINS SPINE

define differentiated autonomy -> identify territory -> map institution/power
-> rights/development purpose -> accountability risk -> named case with limit
-> reform through voice, legality, capacity and audit.

SYNTHESIS

autonomy earns legitimacy when it protects land and custom while remaining inclusive,
reviewable, fiscally accountable and capable of delivering development.